

Kisan Sahkari Chini Mills Ltd. v. Madhyanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 13 March 2014 · WRIT-C No. 15950 of 2014 · WRIT - C No. 15950 of 2014 · **Writ disposed; EE to decide bill representations under cl. 6.5.**

HEADNOTE

A writ seeking a mandamus to the licensee to decide billing-dispute representations was disposed of without examining merits. Accepting that clause 6.5 of the U.P. Electricity Supply Code, 2005 vests such disputes in the Executive Engineer as Prescribed Authority, the Court directed that officer to decide the representations in accordance with law, preferably within six weeks.

FACTUAL SUMMARY

Kisan Sahkari Chini Mills Ltd. and another filed a writ in the Allahabad High Court seeking a direction to Madhyanchal Vidyut Vitran Nigam Ltd. to decide representations dated 2 November 2013 and 27 December 2013 disputing electricity bills raised against the mill. Counsel for the Nigam stated that under clause 6.5 of the U.P. Electricity Supply Code, 2005, billing disputes are to be decided by the Executive Engineer, Vidyut Vitran Khand, Pilibhit, as Prescribed Authority. The Court did not examine whether the bills were correctly raised.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute to Executive Engineer

HOLDING

Without examining the merits of the consumer's claim, a writ asking the licensee to decide billing-dispute representations is disposed of by directing the Executive Engineer (Prescribed Authority) to decide those representations in accordance with law under clause 6.5 of the U.P. Electricity Supply Code, 2005, preferably within six weeks of production of a certified copy of the order and photocopies of the representations. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE BILLING DISPUTE AND OF THE REPRESENTATIONS DATED 2.11.2013 AND 27.12.2013

The Court expressly declined to go into the merits of the petitioner's claim. ¶ 1